



US0D1091238S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,091,238 S**
Subramani (45) **Date of Patent:** **** *Sep. 2, 2025**

(54) **LINER FOR A FOOD HOLDING WELL**

2,250,612 A 7/1941 Tanner

(71) Applicant: **Duke Manufacturing Co.**, St. Louis,
MO (US)

2,299,347 A 10/1942 Rifkin

2,445,470 A 7/1948 Brauer

(Continued)

(72) Inventor: **Sai Ravi Krishna Subramani**,
Houston, TX (US)

FOREIGN PATENT DOCUMENTS

(73) Assignee: **DUKE MANUFACTURING CO.**, St.
Louis, MO (US)

CN 202567851 12/2012

DE 19757004 7/1999

(Continued)

(*) Notice: This patent is subject to a terminal disclaimer.

OTHER PUBLICATIONS

(**) Term: **15 Years**

Duke WW-5 Electric Drop-In Hot Food Well Unit, published May 5, 2021, Chefs Deal, [online], [site visited Jan. 3, 2025], Available from internet URL: <https://www.chefsdeal.com/p/drop-in-hot-food-wells/duke-ww-5> (Year: 2021).*

(21) Appl. No.: **29/870,891**

(Continued)

(22) Filed: **Feb. 8, 2023**

Related U.S. Application Data

(62) Division of application No. 29/768,423, filed on Jan. 29, 2021, now Pat. No. Des. 1,005,781.

Primary Examiner — Justin M Jonaitis

Assistant Examiner — Natalya M Rapundalo

(74) *Attorney, Agent, or Firm* — Stinson LLP

(51) **LOC (15) Cl.** **07-02**

(52) **U.S. Cl.**

USPC **D7/402**; D7/586; D7/587; D7/354

(58) **Field of Classification Search**

USPC D7/354, 366, 396.1, 402, 409, 550.1,
D7/554.1, 554.3, 554.4, 584, 586, 587,
D7/602, 630; D3/304, 314; D9/424,
D9/425, 430, 432

CPC . A47G 23/06; A47J 36/16; A47J 36/24; A47J
36/2405; A47J 37/01; A47J 39/00; A47J
39/006; A47J 39/02

See application file for complete search history.

(57)

CLAIM

The ornamental design for a liner for a food holding well as shown and described.

DESCRIPTION

FIG. 1 is a perspective of a liner for a food holding well; FIG. 2 is a cross-sectional view of the liner for a food holding well taken along line 2-2 shown in FIG. 4; FIG. 3 is a left elevation thereof; FIG. 4 is a top view thereof; FIG. 5 is a front elevation thereof; FIG. 6 is a right elevation thereof; FIG. 7 is a bottom view thereof; and, FIG. 8 is a rear elevation thereof. The cross-sectional hatching of FIG. 2 indicates a body of the liner comprises flexible material, such as silicone rubber.

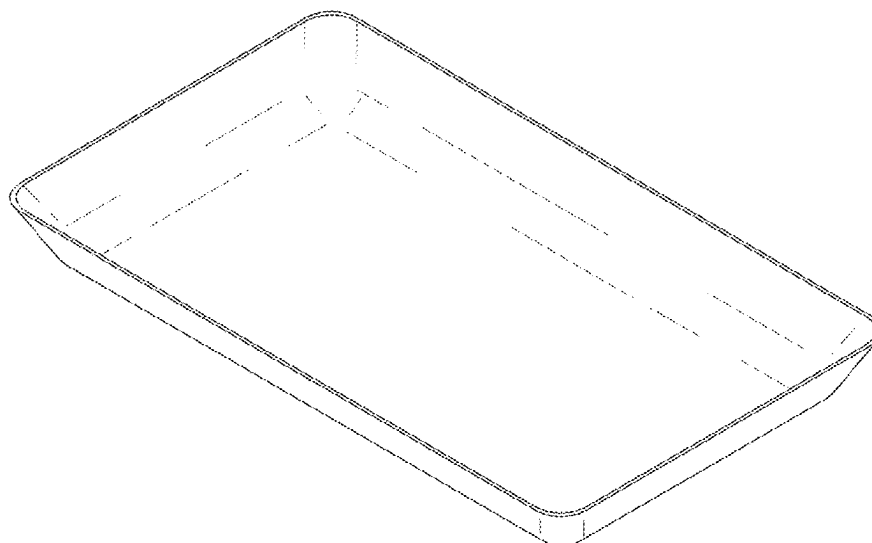
(56) **References Cited**

U.S. PATENT DOCUMENTS

2,042,210 A * 5/1936 Clay A47G 23/06
264/258

2,182,153 A 12/1939 Kucher

1 Claim, 8 Drawing Sheets



US D1,091,238 S

Page 2

(56)

References Cited

U.S. PATENT DOCUMENTS

2,546,417 A 3/1951 Anglin
 2,814,185 A 11/1957 Burg
 3,308,633 A 3/1967 Kritzer
 3,516,485 A 6/1970 Rhoads et al.
 3,780,794 A 12/1973 Staub
 3,797,563 A 3/1974 Hoffmann et al.
 3,897,989 A 8/1975 Grandi
 3,952,794 A 4/1976 Spanoudis
 3,965,969 A 6/1976 Williamson
 3,999,601 A 12/1976 Spanoudis
 4,005,745 A 2/1977 Colato et al.
 4,052,589 A 10/1977 Wyatt
 4,126,775 A 11/1978 Wyatt
 4,203,486 A 5/1980 Rubbright et al.
 4,235,285 A 11/1980 Johnson et al.
 D261,715 S 11/1981 Daenen
 4,306,616 A 12/1981 Woods, Jr. et al.
 4,593,752 A 6/1986 Tipton
 4,685,311 A 8/1987 Rastelli
 4,856,579 A 8/1989 Wolfe
 4,884,626 A 12/1989 Filipowski
 4,898,091 A 2/1990 Rozak et al.
 4,997,030 A 3/1991 Goto et al.
 5,069,273 A 12/1991 O'Hearne
 5,086,693 A 2/1992 Tippmann et al.
 5,116,240 A 5/1992 Wischhusen et al.
 D340,617 S 10/1993 Douglas
 5,363,672 A 11/1994 Moore et al.
 5,388,429 A 2/1995 Shackelford et al.
 5,404,935 A 4/1995 Liebermann
 5,449,232 A 9/1995 Westbrook, Jr. et al.
 5,512,733 A 4/1996 Takikawa et al.
 5,551,774 A 9/1996 Campbell et al.
 5,598,886 A 2/1997 Criado-Mellado
 5,655,595 A 8/1997 Westbrook, Jr.
 5,771,959 A 6/1998 Westbrook, Jr. et al.
 5,782,174 A 7/1998 Cohn et al.
 5,895,104 A 4/1999 Grandi
 5,901,699 A 5/1999 McDermott
 5,910,210 A 6/1999 Violi et al.
 5,927,092 A 7/1999 Kushen et al.
 5,941,077 A 8/1999 Safyan
 5,947,012 A 9/1999 Ewald et al.
 5,954,984 A 9/1999 Ablah et al.
 5,961,866 A 10/1999 Hansen
 5,992,411 A 11/1999 Ayot et al.
 6,034,355 A 3/2000 Naderi et al.
 6,084,206 A 7/2000 Williamson et al.
 6,145,333 A 11/2000 Richmond et al.
 6,202,432 B1 3/2001 Haasis
 6,220,338 B1 4/2001 Grandi
 6,279,470 B2 8/2001 Simeray et al.
 6,315,039 B1 11/2001 Westbrook et al.
 6,344,630 B1 2/2002 Jarvis et al.
 6,385,990 B1 5/2002 Lee
 6,434,961 B2 8/2002 Richmond et al.
 6,447,827 B1 9/2002 Andersen
 6,539,846 B2 4/2003 Citterio et al.
 6,561,317 B1 5/2003 Dudley
 6,606,832 B2 8/2003 Richardson et al.
 D481,262 S 10/2003 Tisdale et al.
 6,658,857 B1 12/2003 George
 6,672,092 B2 1/2004 Ruiz et al.
 D488,352 S * 4/2004 Tisdale D7/586
 6,735,971 B2 5/2004 Monroe et al.
 D493,256 S * 7/2004 Kim D28/61
 6,774,346 B2 8/2004 Clothier
 6,817,201 B2 11/2004 Yingst
 6,910,347 B2 6/2005 Monroe et al.
 7,028,498 B2 4/2006 Monroe et al.
 7,105,779 B2 9/2006 Shei
 7,227,102 B2 6/2007 Shei
 RE40,151 E 3/2008 Shei et al.
 D578,352 S 10/2008 Hauser
 D578,811 S * 10/2008 Gervasi D7/354

D581,203 S * 11/2008 Simon D7/354
 D588,396 S * 3/2009 Millsap D7/354
 D601,382 S 10/2009 Ishida
 D640,099 S * 6/2011 Marshall D7/584
 8,104,852 B2 1/2012 Oh et al.
 D656,778 S * 4/2012 Bolgert D7/354
 8,171,845 B2 5/2012 Hartsfield, Jr. et al.
 D665,225 S 8/2012 Zakula et al.
 8,307,761 B1 11/2012 Shackelford
 8,378,265 B2 2/2013 Greenwood et al.
 D687,268 S 8/2013 Difante
 8,661,970 B2 3/2014 Shackelford
 D718,981 S 12/2014 Katterheinrich et al.
 8,997,640 B2 4/2015 Hartsfield, Jr. et al.
 9,016,192 B2 4/2015 Frauenfeld et al.
 9,089,210 B2 7/2015 Kool
 D767,940 S 10/2016 Gross et al.
 D774,831 S 12/2016 Gebhardt et al.
 9,688,179 B2 6/2017 White et al.
 9,795,253 B2 10/2017 Shackelford
 9,962,037 B2 5/2018 Magner
 D871,155 S 12/2019 Miller et al.
 D871,158 S * 12/2019 Redjal D7/584
 D909,114 S 2/2021 Liao
 D915,829 S * 4/2021 Cloutier D7/554.3
 D920,030 S 5/2021 Stojanovski
 D931,058 S * 9/2021 Hamilton D7/554.3
 D932,231 S 10/2021 Humphreys et al.
 D960,649 S 8/2022 Ghiorghie
 D961,333 S 8/2022 Zhong
 D1,007,237 S * 12/2023 Gao D7/354
 D1,015,052 S 2/2024 Sarnoff et al.
 2002/0134545 A1 9/2002 Cho et al.
 2002/0179131 A1 12/2002 Johnson et al.
 2003/0080657 A1 5/2003 Koopman
 2003/0108647 A1 6/2003 Grandi
 2003/0154733 A1 8/2003 Ruiz et al.
 2004/0020915 A1 2/2004 Shei
 2004/0069766 A1 4/2004 Haasis et al.
 2004/0237959 A1 12/2004 Ashley
 2004/0251255 A1 * 12/2004 Azzar B65D 1/34
 220/23.87
 2005/0023462 A1 2/2005 Rosenman et al.
 2005/0217298 A1 10/2005 Monroe et al.
 2005/0255208 A1 11/2005 Shei
 2006/0081627 A1 4/2006 Shei et al.
 2006/0162908 A1 7/2006 Tippmann
 2006/0201177 A1 9/2006 Spillner
 2007/0210055 A1 9/2007 Konrad
 2008/0025462 A1 1/2008 Shei et al.
 2008/0185390 A1 8/2008 Liebzeit
 2008/0283440 A1 11/2008 Hartsfield, Jr. et al.
 2010/0293979 A1 11/2010 Shei et al.
 2010/0301034 A1 12/2010 Greenwood et al.
 2011/0277644 A1 11/2011 Frauenfeld et al.
 2013/0037237 A1 2/2013 Shackelford
 2014/0131006 A1 5/2014 Shackelford
 2015/0136633 A1 5/2015 Sarnoff et al.
 2017/0082354 A1 3/2017 Lintker et al.
 2017/0328958 A1 11/2017 Bohn et al.
 2018/0014635 A1 1/2018 Turner et al.
 2018/0160854 A1 6/2018 Jennings et al.
 2018/0299024 A1 10/2018 Matsuzaki et al.
 2018/0299192 A1 10/2018 Clark et al.
 2019/0290073 A1 9/2019 Veltrop
 2020/0046170 A1 2/2020 Veltrop
 2021/0348836 A1 11/2021 Lauchnor
 2022/0095837 A1 3/2022 Bigott et al.
 2022/0233023 A1 7/2022 Stettes et al.
 2022/0234785 A1 7/2022 Subramani
 2023/0000246 A1 1/2023 Boudreault
 2023/0007803 A1 1/2023 Song et al.

FOREIGN PATENT DOCUMENTS

DE 10061201 6/2002
 FR 2605395 4/1988
 FR 2759890 8/1998
 JP 2001190338 A 7/2001

(56)

References Cited

FOREIGN PATENT DOCUMENTS

JP	2003070575	3/2003
JP	2008025920	2/2008
JP	2010236808 A	10/2010
KR	20050026599	3/2005
KR	20050031783	4/2005
KR	20050026600	3/2015
WO	WO199416607	8/1994
WO	WO199733130	9/1997
WO	WO199837797	9/1998
WO	WO199853260	11/1998
WO	WO200071950	11/2000
WO	WO2003034882	5/2003
WO	WO2006087012	8/2006
WO	WO2007063294	6/2007
WO	2008/021492 A3	2/2008
WO	WO2008127330	10/2008
WO	WO2010151456	12/2010

OTHER PUBLICATIONS

Duke WWG6 Waterless Hot Food Well, Kitchen Restock, [online], [site visited Jan. 3, 2025], Available from internet URL: <https://kitchenrestock.com/products/duke-wwg6-waterless-hot-food-well-drop-in-unit-ganged-electric> (Year: 2025).*

2003 Flyer—Food Facilities Concepts, Inc., Preliminary Design Study, Cafeteria Renovation, Jun. 17, 2003, 1 page.

Atlas Metal Industries, Inc., _Mobile Cold Serving Unit_, Model No. BLC-4-RM, Oct. 2004, 2 Pgs.

Atlas Metal Industries, Inc., _Mobile Hot Serving Unit_, Model No. BLH-4, Mar. 2001, 2 Pgs.

Barker Sales, _Qcf Series—Self-Service Drop-In Merchandiser_, Model Nos. QCF-3, -4, -5, -6, and -8, May 2007, 2 Pgs.

Corrected IPR Petition Against U.S. Pat. No. 8,701,554, Jun. 12, 2015, 66 pages.

Declaration of Dr. J. Rhett Mayor in Support of Preliminary Injunction Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Aug. 20, 2020, 335 pages.

Defendant Commercial Kitchens, Inc. Original Answer, Affirmative Defenses, and Counterclaim to Complaint Re. Infringement of U.S. Pat. No. 8,701,554, Nov. 18, 2014, 8 pages.

Delfield Co. Answer to Complaint and Counterclaim Re. Infringement of U.S. Pat. No. 8,997,640, Jan. 31, 2023, 29 pages.

Deposition of J. Rhett Mayor, Mar. 5, 2021, 135 pages.

Duke Manufacturing Co. Corrected Opening Brief on Appeal Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Aug. 10, 2021, 148 pages.

Duke Manufacturing Co. Demonstrative Exhibits for the IPRs Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Apr. 7, 2022, 127 pages.

Low Temp. Industries Demonstrative Exhibits for the IPRs Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Apr. 7, 2022, 61 pages.

Duke Manufacturing Co. Memorandum in Support of its Motion for Partial Summary Judgment Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Nov. 18, 2021, 30 pages.

Duke Manufacturing Co. Memorandum Re. its Motion to Amend its Preliminary Invalidity Contentions Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Jul. 23, 2021 11 pages.

Duke Manufacturing Co. Motion for Partial Summary Judgment Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Nov. 18, 2021, 7 pages.

Duke Manufacturing Co. Preliminary Reply in the IPR Re. U.S. Pat. No. 8,307,761, May 19, 2021, 15 pages.

Duke Manufacturing Co. Preliminary Reply in the IPR Re. U.S. Pat. No. 8,661,970, May 19, 2021, 15 pages.

Duke Manufacturing Co. Preliminary Reply in the IPR Re. U.S. Pat. No. 9,795,253, May 19, 2021, 15 pages.

Duke Manufacturing Co. Reply Brief on Appeal Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Sep. 13, 2021, 39 pages.

Duke Manufacturing Co. Reply in Support of its Motion for Partial Summary Judgment Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Jan. 10, 2022 27 pages.

Duke Manufacturing Co. Reply in the IPR Re. U.S. Pat. No. 8,307,761, Jan. 27, 2022 48 pages.

Duke Manufacturing Co. Reply in the IPR Re. U.S. Pat. No. 8,661,970, Jan. 27, 2022 48 pages.

Duke Manufacturing Co. Reply in the IPR Re. U.S. Pat. No. 9,795,253, Jan. 27, 2022 48 pages.

Duke Manufacturing Co. Stipulation of Invalidity Contentions Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Apr. 30, 2021, 5 pages.

Duke Manufacturing Co. Sur Reply in Opposition to Preliminary Injunction Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Mar. 12, 2021, 43 pages.

Duke Mfg. Co., _2006 Standard Products Price Book_, 2 Pgs. Including Cover Page and p. 115. (Applicant points out in the information disclosure statement that the year of publication is sufficiently earlier than the effective U.S. filing date and any foreign priority date so that the particular month of publication is not in issue, per MPEP 37 CFR 1.98(b)).

Expert Declaration of Dr. J. Rhett Mayor Re. the Validity of U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Apr. 22, 2021, 8 pages.

Expert Declaration of J. Rhett Mayor Re. Validity of U.S. Pat. No. 8,307,761, Oct. 21, 2020, 148 pages.

Expert Declaration of J. Rhett Mayor Re. Validity of U.S. Pat. No. 8,661,970, Oct. 21, 2020, 158 pages.

Expert Declaration of J. Rhett Mayor Re. Validity of U.S. Pat. No. 9,795,253, Oct. 21, 2020, 149 pages.

Expert Declaration of Kelly Homan Re. Invalidity of U.S. Pat. No. 8,307,761, Jan. 11, 2021, 200 pages.

Expert Declaration of Kelly Homan Re. Invalidity of U.S. Pat. No. 8,661,970, Jan. 11, 2021, 228 pages.

Expert Declaration of Kelly Homan Re. Invalidity of U.S. Pat. No. 9,795,253, Jan. 11, 2021, 195 pages.

Expert Declaration of Kelly Homan Re. Invalidity of U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Mar. 12, 2021, 241 pages.

Expert Report of Dr. J. Rhett Mayor Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Sep. 23, 2021, 214 pages.

Expert Report of Kelly Homan Re. the Invalidity of U.S. Pat. No. 8,307,761, Sep. 23, 2020, 289 pages.

Expunged Corrected Inter Partes Review Petition Against U.S. Pat. No. 8,701,554, Jun. 8, 2015, 65 pages.

Feb. 16, 2022 Deposition of Kelly Homan, 98 pages.

Federal Circuit Decision Reversing the Preliminary Injunction Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Dec. 28, 2021, 15 pages.

Final Written Decision in the IPR Re. U.S. Pat. No. 8,307,761, Jul. 6, 2022, 53 pages.

Final Written Decision in the IPR Re. U.S. Pat. No. 8,661,970, Jul. 6, 2022, 56 pages.

Final Written Decision in the IPR Re. U.S. Pat. No. 9,795,253, Jul. 15, 2022, 56 pages.

Flexible Heaters, 2014, (Applicant points out in the information disclosure statement that the year of publication is sufficiently earlier than the effective U.S. filing date and any foreign priority date so that the particular month of publication is not in issue, per MPEP 37 CFR 1.98(b)).

Flyer 1 Complete, _Bring Your Lunchroom To Life_, 2002-2003, 8 Pgs. (Applicant points out in the information disclosure statement that the year of publication is sufficiently earlier than the effective U.S. filing date and any foreign priority date so that the particular month of publication is not in issue, per MPEP 37 CFR 1.98(b)).

Flyer 2 Complete, _Bring Your Lunchroom To Life_, 2003-2004, 8 Pgs. (Applicant points out in the information disclosure statement that the year of publication is sufficiently earlier than the effective U.S. filing date and any foreign priority date so that the particular month of publication is not in issue, per MPEP 37 CFR 1.98(b)).

Hatco Corporation, _Glo-Ray Designer Merchandising Warmers_, Model Nos. GR2SDH and GR2SDS, Undated, 2 Pgs.

Hatco Corporation, _Glo-Ray Pizza Warmers_, Model Nos. GRPWS Series, 2 Pgs.

(56)

References Cited**OTHER PUBLICATIONS**

- Hatco Glo-Ray Operator_S Manual, Jul. 2012, 24 pages.
- How a Silicone Heating Pad Works, Feb. 11, 2021, 5 pages.
- Institution Decision in the IPR Re. U.S. Pat. No. 8,307,761, Jul. 9, 2021, 35 pages.
- Institution Decision in the IPR Re. U.S. Pat. No. 8,661,970, Jul. 9, 2021, 39 pages.
- Institution Decision in the IPR Re. U.S. Pat. No. 9,795,253, Jul. 20, 2021, 44 pages.
- Inter Partes Review Petition Against U.S. Pat. No. 8,307,761, Jan. 12, 2021, 118 pages.
- Inter Partes Review Petition Against U.S. Pat. No. 8,661,970, Jan. 12, 2021, 129 pages.
- Inter Partes Review Petition Against U.S. Pat. No. 9,795,253, Jan. 12, 2021, 134 pages.
- Invalidity Contentions for U.S. Pat. No. 8,307,761—Part 1, Mar. 12, 2021, 500 pages.
- Invalidity Contentions for U.S. Pat. No. 8,307,761 based on Duke Heritage Buffet, Jul. 23, 2021, 76 pages.
- Invalidity Contentions for U.S. Pat. No. 8,307,761 based on Finegan, Dec. 11, 2020, 87 pages.
- Invalidity Contentions for U.S. Pat. No. 8,307,761 based on Load King Diamond Bar, Jul. 23, 2021, 114 pages.
- Invalidity Contentions for U.S. Pat. No. 8,307,761 based on Richmond, Dec. 11, 2020, 88 pages.
- Invalidity Contentions for U.S. Pat. No. 8,307,761 based on Shackelford, Dec. 11, 2020, 27 pages.
- Invalidity Contentions for U.S. Pat. No. 8,661,970 based on Duke Heritage Buffet, Jul. 23, 2021, 188 pages.
- Invalidity Contentions for U.S. Pat. No. 8,661,970 based on Finegan, Dec. 11, 2020, 224 pages.
- Invalidity Contentions for U.S. Pat. No. 8,661,970 based on Load King Diamond Bar, Jul. 23, 2021, 242 pages.
- Invalidity Contentions for U.S. Pat. No. 8,661,970 based on Richmond, Dec. 11, 2020, 207 pages.
- Invalidity Contentions for U.S. Pat. No. 8,661,970 based on Shackelford, Dec. 11, 2020, 26 pages.
- Invalidity Contentions for U.S. Pat. No. 9,795,253 based on Duke Heritage Buffet, Jul. 23, 2021, 98 pages.
- Invalidity Contentions for U.S. Pat. No. 9,795,253 based on Finegan, Dec. 11, 2020, 122 pages.
- Invalidity Contentions for U.S. Pat. No. 9,795,253 based on Load King Diamond Bar, Jul. 23, 2021, 165 pages.
- Invalidity Contentions for U.S. Pat. No. 9,795,253 based on Richmond, Dec. 11, 2020, 146 pages.
- Invalidity Contentions for U.S. Pat. No. 9,795,253 based on Shackelford, Dec. 11, 2020, 21 pages.
- Invalidity Contentions for U.S. Pat. No. 8,307,761—Part 2, Mar. 12, 2021, 449 pages.
- Jul. 8, 2021 Deposition of Dennis Finegan, 120 pages.
- Jun. 25, 2021 Deposition of Alvis Hartsfield, 130 pages.
- Kitchen Equipment Fabricating Co. Answer to Counterclaim Re. Infringement of U.S. Pat. No. 8,701,554, Dec. 11, 2014, 5 pages.
- Low Temp Indus. Corrected Responsive Brief on Appeal Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Sep. 7, 2021, 77 pages.
- Low Temp Indus. Preliminary Response in the IPR Re. U.S. Pat. No. 8,661,970, Apr. 22, 2021, 71 pages.
- Low Temp Indus. Preliminary Response in the IPR Re. U.S. Pat. No. 9,795,253, Apr. 28, 2021, 73 pages.
- Low Temp Indus. Preliminary Response in the IPR Re. U.S. Pat. No. 8,307,761, Apr. 22, 2021, 69 pages.
- Low Temp Indus. Preliminary Sur Reply in the IPR Re. U.S. Pat. No. 8,307,761, May 26, 2021, 15 pages.
- Low Temp Indus. Preliminary Sur Reply in the IPR Re. U.S. Pat. No. 8,661,970, May 26, 2021, 15 pages.
- Low Temp Indus. Preliminary Sur Reply in the IPR Re. U.S. Pat. No. 9,795,253, May 26, 2021, 16 pages.
- Low Temp Indus. Response for Preliminary Injunction Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Apr. 2, 2021, 41 pages.
- Low Temp Indus. Response in the IPR Re. U.S. Pat. No. 8,307,761, Oct. 21, 2021, 81 pages.
- Low Temp Indus. Response in the IPR Re. U.S. Pat. No. 8,661,970, Oct. 21, 2021, 81 pages.
- Low Temp Indus. Response in the IPR Re. U.S. Pat. No. 9,795,253, Oct. 21, 2021, 70 pages.
- Low Temp Indus. Sur Reply in the IPR Re. U.S. Pat. No. 8,307,761, Mar. 3, 2022, 38 pages.
- Low Temp Indus. Sur Reply in the IPR Re. U.S. Pat. No. 8,661,970, Mar. 3, 2022, 38 pages.
- Low Temp Indus. Sur Reply in the IPR Re. U.S. Pat. No. 9,795,253, Mar. 3, 2022, 38 pages.
- Low Temp. Industries Reply in Support of its Motion for Preliminary Injunction Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Oct. 12, 2020, 37 pages.
- Mar. 23, 2021 Deposition of Kelly Homan, 90 pages.
- Oct. 1, 2021 Deposition of Kelly Homan, 245 pages.
- Order Granting Motion for Preliminary Injunction Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Jun. 25, 2021, 40 pages.
- Original Inter Partes Review Petition Against U.S. Pat. No. 8,701,554, Mar. 16, 2015, 6 pages.
- Preliminary Injunction Hearing Transcript, Apr. 19, 2021, 289 pages.
- Prosecution History of U.S. Pat. No. 8,171,845, Dec. 29, 2014, 438 pages.
- Prosecution History of U.S. Pat. No. 8,701,554, Aug. 6, 2015, 275 pages.
- Prosecution History of U.S. Pat. No. 8,997,640, May 24, 2016, 322 pages.
- Rebuttal Report of Dr. J. Rhett Mayor Re. Validity of U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Nov. 8, 2021, 177 pages.
- Second Declaration of Dr. J. Rhett Mayor in Support of Preliminary Injunction Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Oct. 12, 2020, 61 pages.
- Second Expert Declaration of Kelly Homan Re. Invalidity of U.S. Pat. No. 8,307,761, Jan. 27, 2022, 74 pages.
- Second Expert Declaration of Kelly Homan Re. Invalidity of U.S. Pat. No. 8,661,970, Jan. 27, 2022, 79 pages.
- Second Expert Declaration of Kelly Homan Re. Invalidity of U.S. Pat. No. 9,795,253, Jan. 27, 2022, 72 pages.
- Supplemental Expert Declaration of Kelly Homan Re. Invalidity of U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Mar. 12, 2021, 75 pages.
- Supplemental Declaration of Kelly Homan in Opposition of Preliminary Injunction Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Mar. 12, 2021, 75 pages.
- The Delfield Company, _F5 Servew Drop In—30_ Deep Mirrored Self-Contained Refrigerated Display Cases_, Jan. 2004, 2 pages.
- The Delfield Company, _Mobile Ice Pan Serving Counters_, Shelleyglas, Model KCI and KCI-NU, May 2007, 2 pages.
- Third Declaration of Dr. J. Rhett Mayor in Support of Preliminary Injunction Re. U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Apr. 2, 2021, 19 pages.
- Wayback Machine Describing Glo-Ray Headed Shelves, 4_10_04, Oct. 6, 2014, 2 Pgs.
- Duke Manufacturing Co. Hot-Cold Convertible Unit Drop In, 2010, 2 pages (Applicant points out in the information disclosure statement that the year of publication is sufficiently earlier than the effective U.S. filing date and any foreign priority date so that the particular month of publication is not in issue, per MPEP 37 CFR 1.98(b)).
- Duke Manufacturing Co. HB3-IH2C Heritage Buffet—Hot-Cold Cold Pan, Sep. 26, 2019, 2 pages.
- Duke Manufacturing Co. E303SW AeroHot Foodservice Hot Food Units—Electric—Sealed Wells, May 2011, 2 pages.
- Duke Manufacturing Co. E303-25 AeroServ Serving Systems—Hot Food Units—Electric, Jun. 2008, 2 pages.
- Duke Manufacturing Co. E-3-CBSS Thurmaduke Steamtables Hot Food Units—Electric—Standard, Jun. 2008, 2 pages.
- Duke Manufacturing Co. Drop Ins, 2010, 4 pages, (Applicant points out in the information disclosure statement that the year of publication is sufficiently earlier than the effective U.S. filing date and

(56)

References Cited**OTHER PUBLICATIONS**

any foreign priority date so that the particular month of publication is not in issue, per MPEP 37 CFR 1.98(b)).

Duke Manufacturing Co. ADI-3E-SW Hot Food Electric—Sealed Well—Drop In, May 2022, 2 pages.

Duke Manufacturing Co. 304-25PG AeroServ Serving Systems—Hot Food Units—Gas, Oct. 2008, 2 pages.

Duke Manufacturing Co. 212-ADI3HC Hot-Cold Convertible Unit Drop In, Jan. 2015, 2 pages.

Declaration of James Bigott Re. Commercial Product Embodied by U.S. Pat. Nos. 8,307,761, 8,661,970, and 9,795,253, Sep. 23, 2021, 85 pages.

American National Standard/NSF International Standard, “Commercial refrigerators and freezers,” Commercial Refrigerator Manufacturers Association, NSF/ANSI 7—2007, 48 pages.

Delfield, “FlexiWell—Mobile hot and cold combination serving counters,” Welbilt, 4 pages.

Duke Manufacturing Co. Specifications, “ADI-2-6HC Drop in Hot and Cold Pan,” F.O.B. Sedalia, Missouri, 2 pages.

Duke Manufacturing Co. Specifications, “Aerohot Foodservice—Hot Food Units—Electric—Sealed Wells,” Catalog No. AFS-ELECSW, A.I.A. File No. 35-C-13, F.O.B Sedalia, Missouri, 2 pages.

Duke Manufacturing Co. Specifications, “Aeroserv—Serving Systems—Hot Food Units—Electric,” Catalog No. ASC-ELECHOT, A.I.A. File No. 35-C-13, F.O.B Sedalia, Missouri, 2 pages.

Duke Manufacturing Co. Specifications, “Aeroserv—Serving Systems—Hot Food Units—Gas,” Catalog No. ASC-GASHOT, A.I.A. File No. 35-C-13, F.O.B Sedalia, Missouri, 2 pages.

Duke Manufacturing Co. Specifications, “Drop-In—Hot Food—Electric—Sealed Well,” Catalog No. ADI-ELECHFSW, A.I.A. File No. 35-C-13, F.O.B Sedalia, Missouri, 2 pages.

Duke Manufacturing Co. Specifications, “Thurmaduke™ Steamtables—Hot Food—Electric—Standard,” Catalog No. TST-Stelechot, A.I.A. File No. 35-C-13, F.O.B Sedalia, Missouri, 2 pages.

Food Safety, “It’s Everyone’s Business,” County of Santa Clara, Department of Environmental Health, Consumer Protection Division, 5th Edition, dated Jul. 2008, 55 pages.

G.A. Systems, Inc., “Hot Cold Dual Operation Drop In,” Specification Sheet, 2 pages.

Low Temp Industries, “QuickSwitch Series—Drop In CHP-X Units,” Operation/Maintenance Manual, Custom Fabricators of Foodservice Equipment, Jonesboro, GA, 26 pages.

Rhode Island Department of Health, “Potentially Hazardous Food Temperatures,” Office of Food Protection, revision dated Nov. 2207, URL: <www.health.ri.gov>.

State of Connecticut: Department of Public Health, “Compliance Guide for the Food Service Inspection Form,” Bureau of Regulatory Services, Division of Environmental Health, Food Protection Program, Hartford, CT, revision dated Dec. 2007, 45 pages.

Strollerderby, “From Ice Box to Sub-Zero: The Evolution of the Kitchen From 1900-2012 (Photos),” available on or before Nov. 16, 2012, via Internet Archive: Wayback Machine URL <<https://web.archive.org/web/20121116004949/http://blogs.babble.com/strollerderby/2012/11/12/from-ice-box-to-sub-zero-the-evolution-of-the-kitchen-from-1900-2012-photos/#close>>, retrieved on Nov. 22, 2021, 6 pages.

The Vollrath Company LLC, “1 Well, 2 Well, 3 Well, and 4 Well Hot/Cold Drop-In (NSF7 Cold Food Holding and NSF4 Hot Food Holding),” Operator’s Manual for Item No. 2350245-1, dated Apr. 29, 2015, 5 pages.

The Vollrath Company LLC, “Hot/Cold Well Modular Drop-ins (NSF7 Cold Food Holding and NSF4 Hot Food Holding),” Operations Manual for Part No. 351818-1, dated Jan. 30, 2019, 12 pages.

* cited by examiner

FIG. 1

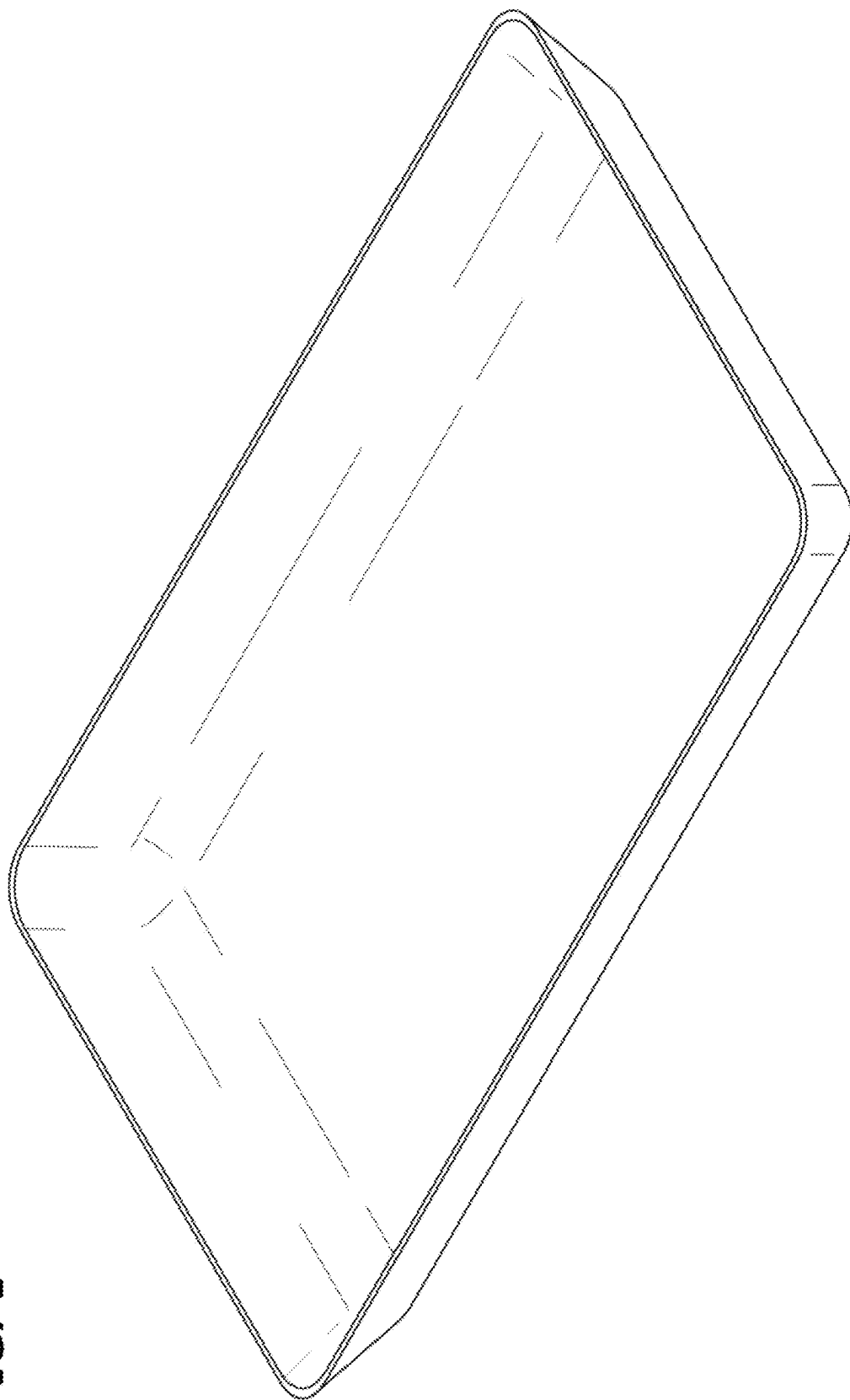


FIG. 2



FIG. 3

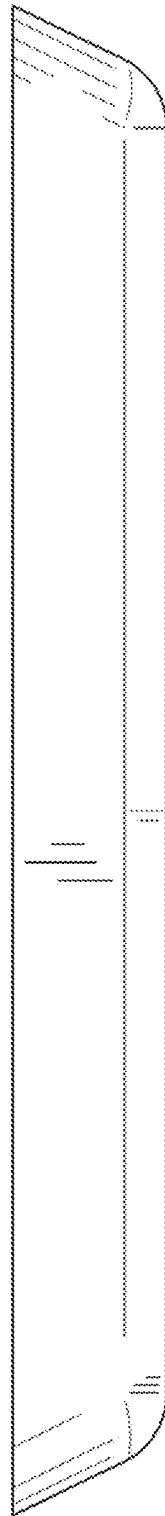


FIG. 4

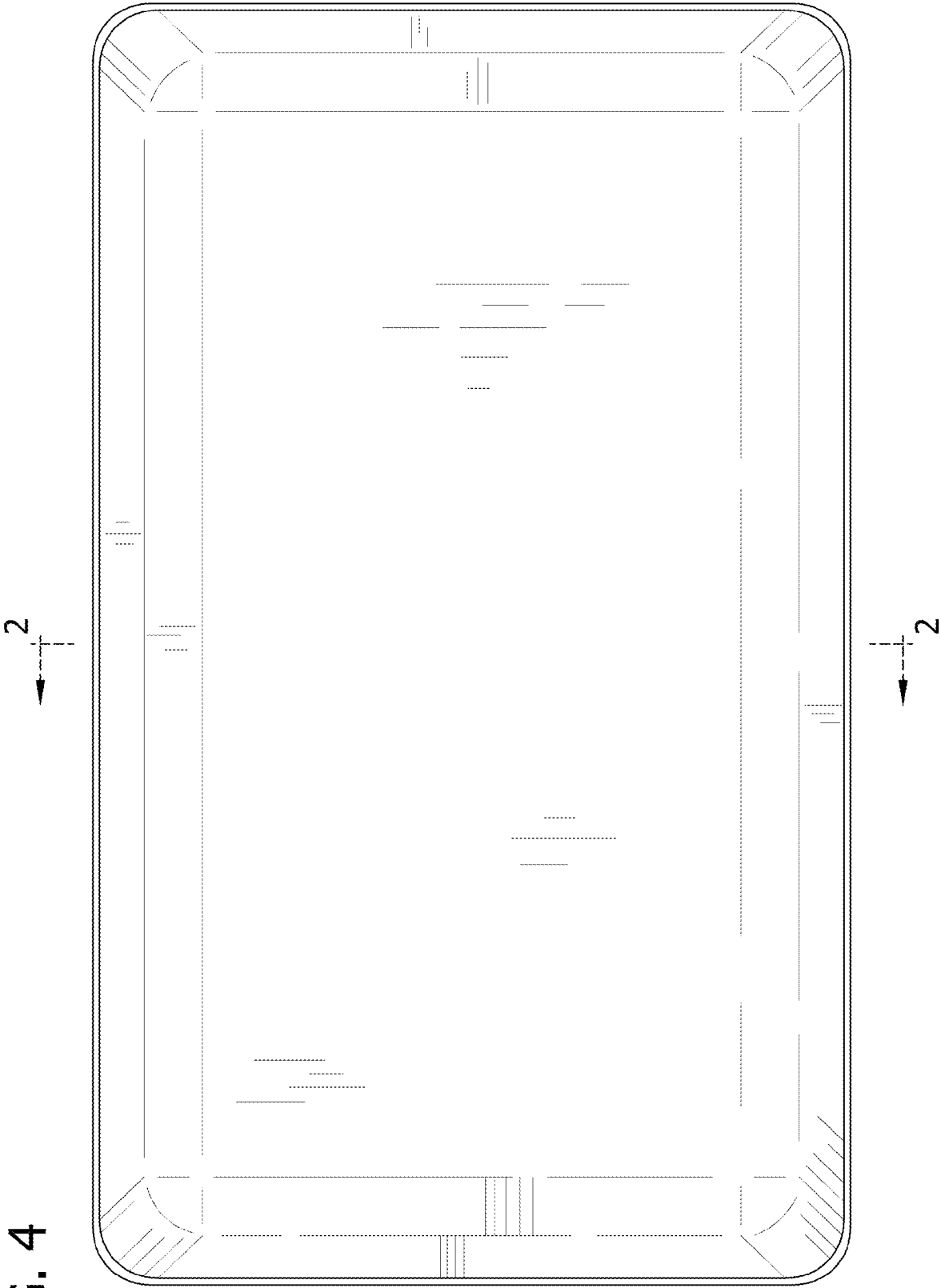


FIG. 5

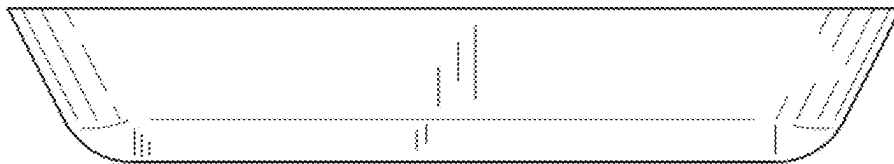


FIG. 6



FIG. 7

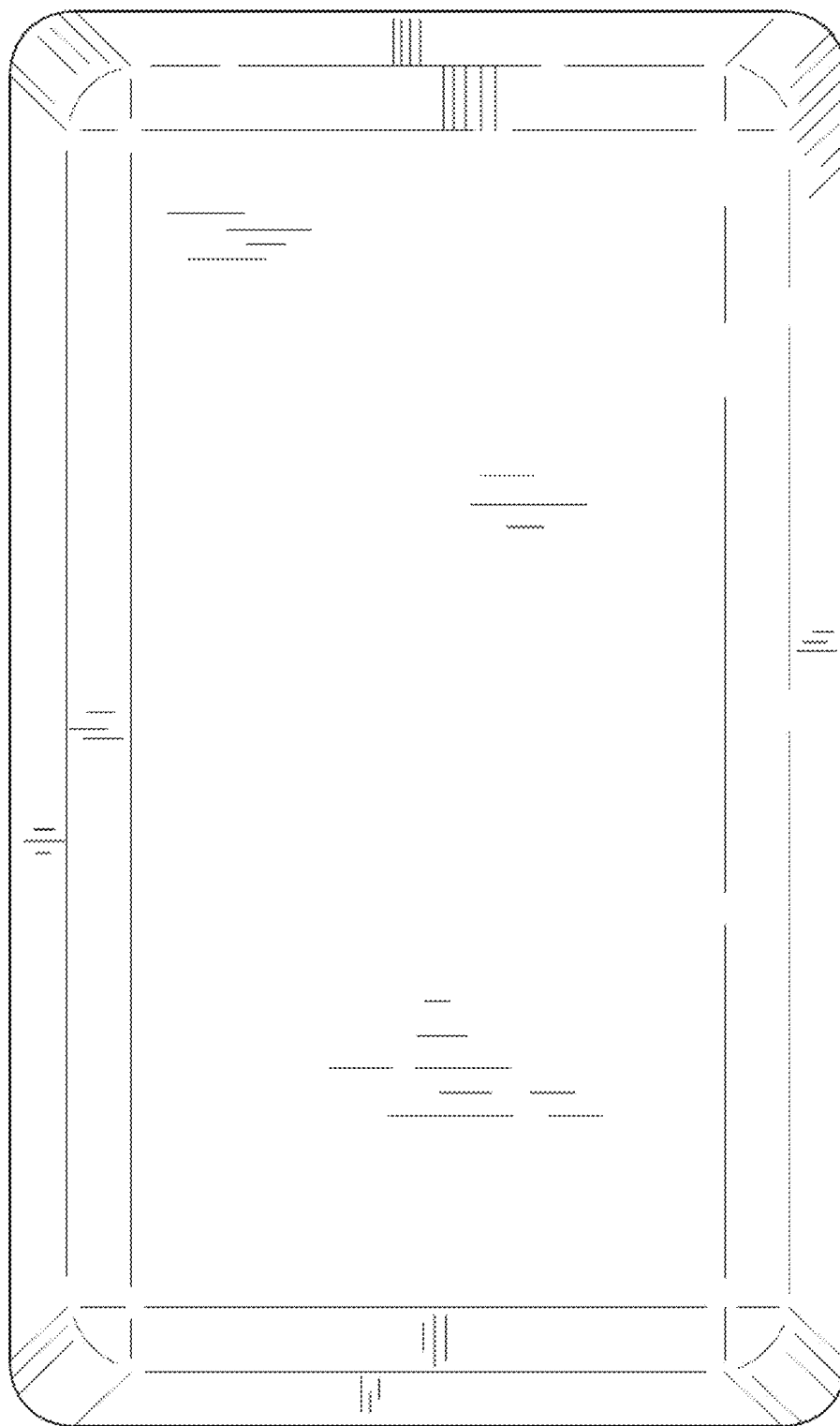


FIG. 8

